

		without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (<i>Hale v. Sharp Healthcare</i> (2010) 183 Cal.App.4th 1373, 1379 [citing <i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 967].). A court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Here, Defendants Anthony Perkins, Matsuki Perkins, and Senoa Holding demurrer to the four causes of action for fraud, the breach of contract cause of action, the violation of Bus. & Prof. Code § 17200 cause of action and the bad faith cause of action. <u>Violation of Cal. R. Ct., rule 3.1113</u> As a preliminary matter, Plaintiff’s Opposition violates Cal. R. Ct., rule 3.1113, subd. (d), which provides that: “Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.” Plaintiff’s Opposition memorandum starts on page 5 and goes to page 26. It exceeds the limit by 7 pages. According to Cal. R. Ct, rule 3.1113, subd. (g), “A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.” The court will consider the merits of the first 15 pages of the Opposition brief (through page 19). <u>Alter Ego</u> First, the individual defendants, Anthony Perkins and Matsuki Perkins, contend that the alter ego allegations fail. Plaintiff alleges the following in support of its alter ego theory of liability: “At all times relevant hereto, Defendant Senoa was the alter ego of Defendants Anthony and Matsuki, and there exists, and at all times herein mentioned has existed, a unity of interest and ownership between Defendants such that any separateness between them has ceased to exist in that Defendants Anthony and Matsuki completely controlled, dominated, managed, and operated Defendant Senoa to suit their convenience.” (Compl., ¶ 7). “At all times relevant thereto, Defendant Senoa was not only influenced and governed by Defendants Anthony and Matsuki, but there was such a unity of interest and ownership that the individuality, or separateness, of Senoa and Anthony and Matsuki have ceased, and that the facts are such that an adherence to the fiction of the separate existence of these entities would, under the particular circumstances, sanction a fraud or promote injustice.” (Compl., ¶ 8).
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